



Consumer Protection Act 1987

1987 CHAPTER 43

PART I

PRODUCT LIABILITY

1 Purpose and construction of Part I.

(1) This Part [^{F1}was enacted] for the purpose of making such provision as [^{F2}was] necessary in order to comply with the product liability Directive and shall be construed accordingly.

(2) In this Part, except in so far as the context otherwise requires—

^{F3}
...

“dependant” and “relative” have the same meaning as they have in, respectively, the ^{M1}Fatal Accidents Act 1976 and the [^{F4}Damages (Scotland) Act 2011];

“producer”, in relation to a product, means—

- (a) the person who manufactured it;
- (b) in the case of a substance which has not been manufactured but has been won or abstracted, the person who won or abstracted it;
- (c) in the case of a product which has not been manufactured, won or abstracted but essential characteristics of which are attributable to an industrial or other process having been carried out (for example, in relation to agricultural produce), the person who carried out that process;

“product” means any goods or electricity and (subject to subsection (3) below) includes a product which is comprised in another product, whether by virtue of being a component part or raw material or otherwise; and

“the product liability Directive” means the Directive of the Council of the [^{F5}European Union], dated 25th July 1985, (No. [85/374/EEC](#)) on the approximation of the laws, regulations and administrative provisions of the member States concerning liability for defective products.

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- (3) For the purposes of this Part a person who supplies any product in which products are comprised, whether by virtue of being component parts or raw materials or otherwise, shall not be treated by reason only of his supply of that product as supplying any of the products so comprised.

Textual Amendments

- F1** Words in s. 1(1) substituted (31.12.2020) by [The Product Safety and Metrology etc. \(Amendment etc.\) \(EU Exit\) Regulations 2019](#) (S.I. 2019/696), reg. 1, **Sch. 3 para. 2(1)** (as amended by S.I. 2020/676, regs. 1(1), 2); 2020 c. 1, Sch. 5 para. 1(1)
- F2** Word in s. 1(1) substituted (31.12.2020) by [The Product Safety and Metrology etc. \(Amendment etc.\) \(EU Exit\) Regulations 2019](#) (S.I. 2019/696), reg. 1, **Sch. 3 para. 2(2)** (as amended by S.I. 2020/676, regs. 1(1), 2); 2020 c. 1, Sch. 5 para. 1(1)
- F3** Definition of "agricultural produce" in s. 1(2) omitted (E.W.) (4.12.2000) by virtue of S.I. 2000/2771, **art. 2(2)** and that same definition omitted (S.) (19.7.2001) by virtue of S.S.I. 2001/265, **art. 2(2)**
- F4** Words in s. 1(2) substituted (S.) (7.7.2011) by [Damages \(Scotland\) Act 2011](#) (asp 7), ss. 15, 19(3), **Sch. 1 para. 4(1)** (with ss. 17, 19(2)); S.S.I. 2011/268, **art. 3**, (with art. 4)
- F5** Words in s. 1(2)(c) substituted (22.4.2011) by [The Treaty of Lisbon \(Changes in Terminology\) Order 2011](#) (S.I. 2011/1043), **art. 4(1)**

Marginal Citations

- M1** 1976 c. 30.

2 Liability for defective products.

- (1) Subject to the following provisions of this Part, where any damage is caused wholly or partly by a defect in a product, every person to whom subsection (2) below applies shall be liable for the damage.
- (2) This subsection applies to—
- the producer of the product;
 - any person who, by putting his name on the product or using a trade mark or other distinguishing mark in relation to the product, has held himself out to be the producer of the product;
 - any person who has imported the product into [^{F6}the United Kingdom] in order, in the course of any business of his, to supply it to another.
- (3) Subject as aforesaid, where any damage is caused wholly or partly by a defect in a product, any person who supplied the product (whether to the person who suffered the damage, to the producer of any product in which the product in question is comprised or to any other person) shall be liable for the damage if—
- the person who suffered the damage requests the supplier to identify one or more of the persons (whether still in existence or not) to whom subsection (2) above applies in relation to the product;
 - that request is made within a reasonable period after the damage occurs and at a time when it is not reasonably practicable for the person making the request to identify all those persons; and
 - the supplier fails, within a reasonable period after receiving the request, either to comply with the request or to identify the person who supplied the product to him.

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^{F7}(4)

- (5) Where two or more persons are liable by virtue of this Part for the same damage, their liability shall be joint and several.
- (6) This section shall be without prejudice to any liability arising otherwise than by virtue of this Part.

Textual Amendments

- F6** Words in s. 2(2)(c) substituted (31.12.2020) by [The Product Safety and Metrology etc. \(Amendment etc.\) \(EU Exit\) Regulations 2019 \(S.I. 2019/696\)](#), reg. 1, [Sch. 3 para. 3](#) (as amended by [S.I. 2020/676](#), regs. 1(1), 2); [2020 c. 1, Sch. 5 para. 1\(1\)](#)
- F7** S. 2(4) omitted (E.W.) (4.12.2000) by virtue of [S.I. 2000/2771, art. 2\(3\)](#) and that same provision omitted (S.) (19.7.2001) by virtue of [S.I. 2001/265, art. 2\(3\)](#)

Modifications etc. (not altering text)

- C1** S. 2(2)(b) amended (31.10.1994) by [1994 c. 26, s. 106\(1\), Sch. 4 para. 1\(2\)](#); [S.I. 1994/2550, art. 2](#)

3 Meaning of “defect”.

- (1) Subject to the following provisions of this section, there is a defect in a product for the purposes of this Part if the safety of the product is not such as persons generally are entitled to expect; and for those purposes “safety”, in relation to a product, shall include safety with respect to products comprised in that product and safety in the context of risks of damage to property, as well as in the context of risks of death or personal injury.
- (2) In determining for the purposes of subsection (1) above what persons generally are entitled to expect in relation to a product all the circumstances shall be taken into account, including—
- (a) the manner in which, and purposes for which, the product has been marketed, its get-up, the use of any mark in relation to the product and any instructions for, or warnings with respect to, doing or refraining from doing anything with or in relation to the product;
 - (b) what might reasonably be expected to be done with or in relation to the product; and
 - (c) the time when the product was supplied by its producer to another;
- and nothing in this section shall require a defect to be inferred from the fact alone that the safety of a product which is supplied after that time is greater than the safety of the product in question.

4 Defences.

- (1) In any civil proceedings by virtue of this Part against any person (“the person proceeded against”) in respect of a defect in a product it shall be a defence for him to show—
- (a) that the defect is attributable to compliance with any requirement imposed by or under any enactment or with any [^{F8}retained][^{F9}EU] obligation; or
 - (b) that the person proceeded against did not at any time supply the product to another; or

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- (c) that the following conditions are satisfied, that is to say—
 - (i) that the only supply of the product to another by the person proceeded against was otherwise than in the course of a business of that person's; and
 - (ii) that section 2(2) above does not apply to that person or applies to him by virtue only of things done otherwise than with a view to profit; or
 - (d) that the defect did not exist in the product at the relevant time; or
 - (e) that the state of scientific and technical knowledge at the relevant time was not such that a producer of products of the same description as the product in question might be expected to have discovered the defect if it had existed in his products while they were under his control; or
 - (f) that the defect—
 - (i) constituted a defect in a product (“the subsequent product”) in which the product in question had been comprised; and
 - (ii) was wholly attributable to the design of the subsequent product or to compliance by the producer of the product in question with instructions given by the producer of the subsequent product.
- (2) In this section “the relevant time”, in relation to electricity, means the time at which it was generated, being a time before it was transmitted or distributed, and in relation to any other product, means—
- (a) if the person proceeded against is a person to whom subsection (2) of section 2 above applies in relation to the product, the time when he supplied the product to another;
 - (b) if that subsection does not apply to that person in relation to the product, the time when the product was last supplied by a person to whom that subsection does apply in relation to the product.

Textual Amendments

- F8** Word in s. 4(1)(a) inserted (31.12.2020) by [The Product Safety and Metrology etc. \(Amendment etc.\) \(EU Exit\) Regulations 2019 \(S.I. 2019/696\)](#), reg. 1, **Sch. 3 para. 4** (as amended by S.I. 2020/676, regs. 1(1), 2); 2020 c. 1, **Sch. 5 para. 1(1)**
- F9** Words in s. 4(1)(a) substituted (22.4.2011) by [The Treaty of Lisbon \(Changes in Terminology\) Order 2011 \(S.I. 2011/1043\)](#), **art. 6(1)(e)**

5 Damage giving rise to liability.

- (1) Subject to the following provisions of this section, in this Part “damage” means death or personal injury or any loss of or damage to any property (including land).
- (2) A person shall not be liable under section 2 above in respect of any defect in a product for the loss of or any damage to the product itself or for the loss of or any damage to the whole or any part of any product which has been supplied with the product in question comprised in it.
- (3) A person shall not be liable under section 2 above for any loss of or damage to any property which, at the time it is lost or damaged, is not—
 - (a) of a description of property ordinarily intended for private use, occupation or consumption; and

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- (b) intended by the person suffering the loss or damage mainly for his own private use, occupation or consumption.
- (4) No damages shall be awarded to any person by virtue of this Part in respect of any loss of or damage to any property if the amount which would fall to be so awarded to that person, apart from this subsection and any liability for interest, does not exceed £275.
- (5) In determining for the purposes of this Part who has suffered any loss of or damage to property and when any such loss or damage occurred, the loss or damage shall be regarded as having occurred at the earliest time at which a person with an interest in the property had knowledge of the material facts about the loss or damage.
- (6) For the purposes of subsection (5) above the material facts about any loss of or damage to any property are such facts about the loss or damage as would lead a reasonable person with an interest in the property to consider the loss or damage sufficiently serious to justify his instituting proceedings for damages against a defendant who did not dispute liability and was able to satisfy a judgment.
- (7) For the purposes of subsection (5) above a person's knowledge includes knowledge which he might reasonably have been expected to acquire—
 - (a) from facts observable or ascertainable by him; or
 - (b) from facts ascertainable by him with the help of appropriate expert advice which it is reasonable for him to seek;but a person shall not be taken by virtue of this subsection to have knowledge of a fact ascertainable by him only with the help of expert advice unless he has failed to take all reasonable steps to obtain (and, where appropriate, to act on) that advice.
- (8) Subsections (5) to (7) above shall not extend to Scotland.

6 Application of certain enactments etc.

- (1) Any damage for which a person is liable under section 2 above shall be deemed to have been caused—
 - (a) for the purposes of the ^{M2}Fatal Accidents Act 1976, by that person's wrongful act, neglect or default;
 - (b) for the purposes of section 3 of the ^{M3}Law Reform (Miscellaneous Provisions) (Scotland) Act 1940 (contribution among joint wrongdoers), by that person's wrongful act or negligent act or omission;
 - (c) for the purposes of ^{F10}sections 3 to 6 of the Damages (Scotland) Act 2011 (rights of relatives of a deceased), by that person's act or omission; and
 - (d) for the purposes of Part II of the ^{M4}Administration of Justice Act 1982 (damages for personal injuries, etc.—Scotland), by an act or omission giving rise to liability in that person to pay damages.
- (2) Where—
 - (a) a person's death is caused wholly or partly by a defect in a product, or a person dies after suffering damage which has been so caused;
 - (b) a request such as mentioned in paragraph (a) of subsection (3) of section 2 above is made to a supplier of the product by that person's personal representatives or, in the case of a person whose death is caused wholly or partly by the defect, by any dependant or relative of that person; and
 - (c) the conditions specified in paragraphs (b) and (c) of that subsection are satisfied in relation to that request,

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this Part shall have effect for the purposes of the ^{M5}Law Reform (Miscellaneous Provisions) Act 1934, the Fatal Accidents Act 1976 and the [^{F11}Damages (Scotland) Act 2011] as if liability of the supplier to that person under that subsection did not depend on that person having requested the supplier to identify certain persons or on the said conditions having been satisfied in relation to a request made by that person.

- (3) Section 1 of the ^{M6}Congenital Disabilities (Civil Liability) Act 1976 shall have effect for the purposes of this Part as if—
- (a) a person were answerable to a child in respect of an occurrence caused wholly or partly by a defect in a product if he is or has been liable under section 2 above in respect of any effect of the occurrence on a parent of the child, or would be so liable if the occurrence caused a parent of the child to suffer damage;
 - (b) the provisions of this Part relating to liability under section 2 above applied in relation to liability by virtue of paragraph (a) above under the said section 1; and
 - (c) subsection (6) of the said section 1 (exclusion of liability) were omitted.
- (4) Where any damage is caused partly by a defect in a product and partly by the fault of the person suffering the damage, the ^{M7}Law Reform (Contributory Negligence) Act ^{M8}1945 and section 5 of the Fatal Accidents Act 1976 (contributory negligence) shall have effect as if the defect were the fault of every person liable by virtue of this Part for the damage caused by the defect.
- (5) In subsection (4) above “fault” has the same meaning as in the said Act of 1945.
- (6) Schedule 1 to this Act shall have effect for the purpose of amending the ^{M9}Limitation Act 1980 and the ^{M10}Prescription and Limitation (Scotland) Act 1973 in their application in relation to the bringing of actions by virtue of this Part.
- (7) It is hereby declared that liability by virtue of this Part is to be treated as liability in tort for the purposes of any enactment conferring jurisdiction on any court with respect to any matter.
- (8) Nothing in this Part shall prejudice the operation of section 12 of the ^{M11}Nuclear Installations Act 1965 (rights to compensation for certain breaches of duties confined to rights under that Act).

Textual Amendments

- F10** Words in s. 6(1)(c) substituted (S.) (7.7.2011) by [Damages \(Scotland\) Act 2011 \(asp 7\)](#), ss. 15, 19(3), [Sch. 1 para. 4\(2\)\(a\)](#) (with ss. 17, 19(2)); S.S.I. 2011/268, [art. 3](#), (with art. 4)
- F11** Words in s. 6(2) substituted (S.) (7.7.2011) by [Damages \(Scotland\) Act 2011 \(asp 7\)](#), ss. 15, 19(3), [Sch. 1 para. 4\(2\)\(b\)](#) (with ss. 17, 19(2)); S.S.I. 2011/268, [art. 3](#), (with art. 4)
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Marginal Citations

- M2** 1976 c. 30.
M3 1940 c. 42.
M4 1982 c. 53.
M5 1934 c. 41.
M6 1976 c. 28.
M7 1945 c. 28.
M8 1976 c.30.
M9 1980 c. 58.

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M10 1973 c. 52.

M11 1965 c. 57.

7 Prohibition on exclusions from liability.

The liability of a person by virtue of this Part to a person who has suffered damage caused wholly or partly by a defect in a product, or to a dependant or relative of such a person, shall not be limited or excluded by any contract term, by any notice or by any other provision.

^{F12}8 Power to modify Part I.

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Textual Amendments

F12 S. 8 omitted (31.12.2020) by virtue of [The Product Safety and Metrology etc. \(Amendment etc.\) \(EU Exit\) Regulations 2019](#) (S.I. 2019/696), reg. 1, **Sch. 3 para. 5** (with [Sch. 3 para. 6](#)) (as amended by [S.I. 2020/676](#), regs. 1(1), 2); 2020 c. 1, Sch. 5 para. 1(1)

9 Application of Part I to Crown.

(1) Subject to subsection (2) below, this Part shall bind the Crown.

(2) The Crown shall not, as regards the Crown's liability by virtue of this Part, be bound by this Part further than the Crown is made liable in tort or in reparation under the ^{M12}Crown Proceedings Act 1947, as that Act has effect from time to time.

Marginal Citations

M12 1947 c. 44.

Changes to legislation:

There are currently no known outstanding effects for the Consumer Protection Act 1987, Part I.